

Analysis

First, Plaintiffs are correct that Defendant PES must submit verifications to its interrogatory responses, pursuant to Code of Civil Procedure section 2030.250(a). PES may not indefinitely prevent Plaintiffs from receiving discovery by failing to submit verifications and declaring any resulting motions premature. A reasonable time has come and gone, and verifications are significantly delinquent. The requirement that a Motion to Compel may only be filed after service of verified responses does not apply to this Motion. Defendant's citation to section 2031.300 is inapplicable to a motion relating to interrogatory responses.

Second, PES does not rebut that PES has waived objections and the option to produce writings pursuant to section 2030.290, because its response was not complete. The Court is aware, however, that timely *objections* are not waived. (*Food 4 Less Supermarkets, Inc. v. Superior Court (Fletcher)* (1995) 40 Cal.App.4th 651, 657-658 ("Defendants did serve their responses within the statutory time period. The lack of verification did not render their objections untimely.")).

It should be noted that it does appear that many of the interrogatories cited in the Separate Statement were neither propounded by Plaintiffs nor should they have been, as they do not match the type of case before the Court. The Court is only addressing those interrogatories actually propounded, as shown in Kang Exhibit 25.³ With respect to those interrogatories and the request for verifications, the Motion is **granted**. With respect to those interrogatories and the request for responses without objections, the Motion is **denied**.

Finally, Plaintiffs request an order imposing monetary sanctions against Defendant in the amount of \$6,565 as partial reimbursement for Plaintiffs' attorney's fees. It should be noted that, as of this hearing date, there are three Motions to Compel on calendar against three defendants, two of which are in a slightly different procedural posture, and yet the sanctions requests are identical for these three as well as five more motions to be heard over several coming weeks. The Court will impose appropriate sanctions but they must be specific to each motion. The Court recognizes that initially, discovery responses came jointly from many defendants and much of the meet and confer process addressed several defendants jointly, and several modalities of discovery jointly, but the Court will not award duplicative monetary sanctions. Moreover, certain counsel conducted different aspects of the discovery differently and will not be subject to sanctions to the same degree. The Court will permit supplemental filings relating to the amount of time Counsel spent on this particular motion, recognizing that some of the work overlapped with other motions.

13. 9:00 AM CASE NUMBER: C24-01854
CASE NAME: REGINALD CANNON VS. MELISSA KATZ
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM INTEROGS**
AGAINST PROMEDICA HEALTH SYSTEM, INC.

³ Counsel's omnibus declaration for all eight motions heard over three separate hearing dates may have saved counsel time, but it has saddled the Court with the burdensome effort of wading through the same 934 pages of documents for each separate motion. In the future, the Court would appreciate declarations that correspond to the separate motions.

FILED BY: CANNON, REGINALD R.

TENTATIVE RULING:

Plaintiffs Reginald Cannon et al. brought a Motion to Compel Further Responses to Form Interrogatories, Verifications, and for Sanctions against Promedica Health System, Inc. (PHS). The Motion initially sought verifications to previously unverified responses as well as responses without objections given the lack of verifications. Plaintiffs also sought sanctions. After PHS supplemented and verified its responses one day before opposing Plaintiffs' Motion, the goalposts have moved and Plaintiffs now seek the responses to be amended again to adjust for late-asserted objections that they argue have been waived. They continue to seek sanctions. They no longer seek verifications, as those have belatedly been provided.

Background

This is an elder abuse case with several defendants. On December 5, 2024, Plaintiffs served Form Interrogatories, Set One on PHS. At the time, PHS was represented by counsel who now only represent certain co-defendants. On February 7, 2025, PHS served responses and objections, but the responses lacked verifications. The parties met and conferred regarding the responses and lack of verifications. In the Court's file are multiple lengthy letters from Plaintiffs' counsel, indications that the parties spoke by telephone, and *no* letters from either Defendants' prior or current counsel indicating any plans to amend, supplement, or verify the responses in a timely manner. The meet and confer process addressed several different discovery requests and responses, many of which are the subject of separate motions before the Court on additional hearing dates. With respect to the Form Interrogatories, there appears to have been only one purportedly delinquent *answer*, and that answer is not identified as delinquent in Plaintiffs' moving papers. It appears that the primary concern of Plaintiffs at the time of filing this motion was that the interrogatories were not verified. Plaintiffs filed this on October 1, 2025. On November 12, 2025, PHS replaced its counsel.

On January 28, 2026, at a Case Management Conference, the Court heard from the parties that there was voluminous discovery and that new counsel intended to supplement the discovery. The Court requested further meeting and conferring, noting that it did not wish to prepare for a motion that was mooted. The Court stated that the service of amended responses "doesn't mean you're entitled to sanctions, but they don't automatically go off calendar, but I would like the parties to meet and confer as much as they possibly can and see if ahead of the hearing you can communicate to the court any kind of at least narrowing of the issues."

PHS served amended responses with a verification on February 26, 2026. PHS filed the opposition to this Motion on February 27, 2026. Plaintiffs filed their reply, indicating that the amended responses contain new objections not previously asserted, and removed responses previously provided.

Analysis

Erroneous Separate Statement/Motion

PHS complains that Plaintiffs moved to compel verifications and responses to FROGs never propounded. In a footnote, Plaintiffs acknowledge this error and clarify they seek responses to: 1.1,

3.1, 3.2, 3.3, 3.4, 3.5, 3.6, 3.7, 4.1, 4.2, 12.1, 12.2, 12.3, 12.4, 12.5, 12.6, 12.7, 13.1, 13.2, 14.1, 14.2, 15.1, 16.1, 16.2, 16.3, 16.4, 16.5, 16.6, 16.7, 16.8, 16.9, and 16.10. The Court will therefore quite obviously only be addressing discovery actually served.

Mooting of the Motion

PHS also claims that service of verified amended responses renders this Motion moot. These verified amended responses were served over one year after the initial responses, three months after new counsel substituted in, and one day before the opposition to the Motion was filed. While the request for verifications is now a moot issue, there remain several issues to be discussed. The verifications were untimely, rendering the substantive answers untimely. (*Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636 (“Unsworn responses are tantamount to no responses at all.”).) “In many cases involving untimely responses, the propounding party will take the motion off calendar or narrow its scope to the issue of sanctions. If the propounding party proceeds with the motion, however, the trial court has the discretion to rule on the motion.” (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 409.) The Court will address all ripe and relevant issues.

Waiver of Objections

Plaintiffs initially sought to compel verified answers without objection, arguing that the lack of timely verifications waived PHS’s right to assert objections. This is not correct. As PHS indicates, where objections and substantive responses are served simultaneously, timely objections are not waived. (*Food 4 Less Supermarkets, Inc. v. Superior Court (Fletcher)* (1995) 40 Cal.App.4th 651, 657-658 (“Defendants did serve their responses within the statutory time period. The lack of verification did not render their objections untimely.”). Plaintiffs appear to concede this point. The Court will not order new responses without *any* objections.

In their reply brief, Plaintiffs note: “PHS asserts new privilege or work product objections to FROG Nos. 1.1, 4.1, 12.1, and 16.1-16.5; new privacy objections to FROG Nos. 4.1 and 4.2; new objections based on HIPAA, Evidence Code section 1151, and section 1280 et seq. of the Health and Safety Code to FROG Nos. 12.1, 12.2, 12.3, 12.6, 14.1, 14.2, 16.1, 16.2, 16.3, and 16.5; new Evidence Code section 1157 objections to FROG Nos. 16.1-16.5, and others.” With respect to the issue of PHS’s newly-asserted objections, Plaintiffs appear to be correct. Although the Court does not have the benefit of PHS’s response to this point, that is a function of PHS having served its verified responses with new objections two weeks ago, the day before it filed its Opposition. It is too late for new objections to be asserted. “It is clear from the Act that the Legislature intended that any and all objections are to be made at the earliest timely response.” *Scottsdale Ins. Co. v. Sup. Ct. (Spyglass Homeowners Ass’n)* (1997) 59 Cal.App.4th 263, 273. Privilege objections are included here. There is relief from waiver, but there must be a showing of “mistake, inadvertence, or excusable neglect.” No such showing is present here, and in any event such a showing would need to be made on *Defendant’s* motion. Code Civ. Pro. § 2030.290(a). The only objections that may be capable of being asserted later are those applicable to third parties.⁴ PHS’s HIPAA objections *may* be capable of being

⁴ There is a single authority suggesting that constitutional objections may not be waivable, *Heda v. Sup. Ct (Davis)* (1990) 225 Cal.App.3d 525, 529-530, but that case is inconsistent with section 2030.290(a).

asserted, but they must be validly asserted and Plaintiffs are entitled to production of information with personal health information removed. The Court will permit supplemental motions if needed on this issue.

Further Responses

PHS argues that Plaintiffs cannot seek to compel “further responses” where the responses are there. While the Court is not certain there is anything that Plaintiffs actually seek here, it is nevertheless true that section 2030.300 is directly on point: “(a) On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply: (1) An answer to a particular interrogatory is evasive or incomplete.” To the extent Plaintiffs are dissatisfied that any responses are “complete,” particularly in light of the newly asserted objections, they are entitled to seek to compel further responses. Given the late-breaking amendments, however, the Court is not clear what remains to be discussed on this matter, and will permit further briefing after further meeting and conferring if necessary.

Sanctions

Finally, Plaintiffs seek an order imposing monetary sanctions against Defendant in the amount of \$6,565 as “partial reimbursement” for Plaintiffs’ attorney’s fees. PHS argues throughout its Opposition that their service of amended responses suffices to solve Plaintiffs’ concerns and that Plaintiffs sought to proceed on their motions despite the change in counsel and promised amendments. This argument would have been substantially more compelling had PHS’s amendments not arrived over a year after the original responses. Although the defect was one simply of lack of verifications, PHS cannot sit on a technical defect for a year and then throw their hands up and claim Plaintiffs have no recourse. Moreover, while the change in counsel is important, it is also notable that three and a half months passed between that substitution and amended responses, giving Plaintiffs little time between the amendment and this very hearing. Indeed, this behavior is *directly contradictory* to what the Court noted it wanted at the January 28 case management conference. PHS has provided the transcript from that hearing as an argument *against* sanctions, yet never acknowledges that its behavior in provided amended responses the *day prior* to its Opposition foreclosed any possibility of a meaningful opportunity for Plaintiffs to adjust or withdraw their Motion. Additionally, the Court must consider the behavior of HCR through its prior counsel as well.

California Rule of Court 3.1348(a) provides: “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though . . . the requested discovery was provided to the moving party after the motion was filed.” Sanctions here are appropriate. The Court is a bit confused, however, by the requested amount, as Plaintiffs have sought identical amounts in all motions, where they should be specific to each motion. The Court requires further clarification. The Court recognizes that initially, discovery responses came jointly from many defendants and much of the meet and confer process addressed several defendants jointly, and several modalities of discovery jointly, but the Court will not award duplicative monetary sanctions. Moreover, certain counsel conducted different aspects of the discovery differently and will not be subject to sanctions to the same degree.

Ruling

Plaintiffs' Motion is **Granted in Part and Denied in Part as Moot**. The Court orders PHS to serve amended responses without the objections that were first asserted on February 26, 2026. All responses should be verified no later than five business days after being served. Sanctions will be awarded, but Plaintiff must file a *brief* amended declaration regarding the amount sought for this specific motion.

14. 9:00 AM CASE NUMBER: C24-03466
CASE NAME: MASON BONDI VS. TRENT LOCKETT
HEARING IN RE: APPLICATION AND HEARING FOR RIGHT ATTACH ORDER AND ISSUANCE
FILED BY: BONDI, MASON
TENTATIVE RULING:

Given the late-filed opposition to the Application, on the Court's own motion, the hearing on the motion is **continued to 9:00 a.m. on March 26, 2026**.

15. 9:00 AM CASE NUMBER: C25-01311
CASE NAME: SAYED AMIR EFFATNEYAD VS. NEDA VALIASHRAFI
HEARING IN RE: MOTION TO QUASH SUBPOENA FOR PROTECTIVE ORDER & SANCTIONS
FILED BY:
TENTATIVE RULING:

Plaintiff Sayed Amir Effatneyad has filed a complaint against Defendant Deda Valiashafri for claims arising out of a construction project, including claims for defamation. Defendant alleges that Plaintiff Effatneyad was an unlicensed contractor at the time of the services. Defendant served a subpoena on the Constructor's State Licensing Board (CSLB) and Plaintiff now moves to quash that subpoena.

The filings of both parties contain substantial discussion of extraneous information unrelated to the Motion to Quash. The only question before the court at this hearing is whether the subpoena is valid: whether service was proper and whether it is properly within the Discovery Act.

Plaintiff Effatneyad states that the CSLB records are statutorily confidential and cannot be produced without a court order, a showing of good cause, and narrowly tailored requests. There is no support for this argument, nor is there indication that the subpoena was not narrowly tailored. Given the scope of the claims and relief sought, it seeks information that "appears reasonably calculated to lead to the discovery of admissible evidence." CCP § 2017.010. Defendant has therefore articulated good cause for the subpoena.

Plaintiff also claims that the "Notice of Consumer" was invalid, as it was served by email. While Defendant Valiashrafi disputes that a "Notice to Consumer" was required, Defendant notes that the Notice was mailed, with a *courtesy copy* by email. More than adequate notice was given.

The Motion to Quash is therefore **denied**.